

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF NEW YORK

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TALIA LIFSCHUTZ,

VERIFIED COMPLAINT

Plaintiff,

Index No.:

against

CITY OF NEW YORK, JON E. FELZ (Shield Tax Reg.
972635), Individually, SAL TRAMONTANA
(Shield Tax Reg. # 949740), Individually, AND JOHN AND JANE
DOE POLICE OFFICERS OF THE MIDTOWN SOUTH
PRECINCT (1-5) Individually (the names John and Jane Doe
being fictitious, as the true names are presently unknown),

Defendants.
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Plaintiff, TALIA LIFSCHUTZ, by and through her attorney, Gerald B. Lefcourt, P.C., as
and for her Verified Complaint, alleges as follows:

THE PARTIES

1. Plaintiff is a natural person who currently resides in Nassau County, New York.

At all relevant times, she was over the age of 18 years of age.

2. The causes of action alleged herein arose in the State of New York, City of New York, County of New York.

3. The Defendant City of New York was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

4. The Defendant City of New York maintains the City of New York Police Department (hereinafter referred to as the "NYPD"), a duly authorized public authority, agency, and/or police department, authorized to perform all functions of a police department as per the applicable sections of the aforementioned municipal corporation, City of New York.

5. At all times hereinafter mentioned, the individually named defendants, Jon E. Felz (Shield Tax Reg. # 972635), Sal Tramontana (Shield Tax Reg. # 949740), and John and Jane Does Police Officers of The Midtown South Precinct (1-5), were duly sworn police officers of the NYPD and were acting under the supervision of said department and according to their official duties.

6. That at all times hereinafter mentioned the Defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages, and/or practices of the State of New York and/or City of New York.

7. Each and all of the acts of the Defendants alleged herein were done by said Defendants within the scope of their employment by Defendant City of New York and the NYPD.

PREREQUISITES TO FILING SUIT

8. Within ninety (90) days after the claim herein accrued, Plaintiff duly served upon, presented to, and filed with the City of New York, a Notice of Claim setting forth all facts and information required under the General Municipal Law 50-e.

9. Thereafter, the City of New York neglected or refused to make an adjustment or payment of Plaintiff's Notice of Claim, and more than thirty (30) days have elapsed since the presentation of such claim as aforesaid.

10. Within ninety (90) days after filing the aforementioned Notice of Claim, the City of New York noticed a 50H examination of Plaintiff, and the examination was held on the consent of the parties on or about June 6, 2023.

11. This action was commenced within one (1) year and ninety (90) days after the causes of action herein accrued.

12. Plaintiff has complied with all conditions precedent to maintaining the instant action.

13. All causes of action pled herein fall within one or more of the exceptions set forth in New York's Civil Practice Law & Rules 1602 with respect to joint and several liability.

FACTUAL ALLEGATIONS COMMON TO ALL CLAIMS

14. On or about September 8, 2022, at approximately 5:00, p.m. at the Southwest corner of West 34th Street and Seventh Avenue in the County of New York, City of New York, State of New York, Plaintiff approached Police Officers of the Midtown South Precinct, including upon information and belief Defendants Jon E. Felz, and John and Jane Doe Police Officers of the Midtown South Precinct (1-2) to report having been assaulted by an unknown individual, Mark Roe ("Roe").

15. Roe, who had been holding a sign containing what Plaintiff believed were antisemitic statements and who was verbally making what Plaintiff felt were antisemitic statements, had punched Plaintiff in the face, knocking her to the ground, and causing redness and pain to her face.

16. Initially, the Defendant Police Officers, including upon information and belief Defendants Jon E. Felz, and John and Jane Doe Police Officers of the Midtown South Precinct (1-2), showed no interest in Plaintiff's complaint or injuries.

17. Plaintiff persisted in her complaint and eventually the Defendant Police Officers, including upon information and belief Defendants Jon E. Felz, and John and Jane Doe Police Officers of the Midtown South Precinct (1-2), went to speak with Roe. Immediately thereafter,

Defendant Police Officers, including upon information and belief Defendants Jon E. Felz, and John and Jane Doe Police Officers of the Midtown South Precinct (1-2) arrested Plaintiff.

18. Upon information and belief, Plaintiff was unlawfully detained at the corner of West 34th Street and Seventh Avenue in the County of New York, City of New York, State of New York, in public view, while being forced to wear handcuffs, for at least an hour.

19. Thereafter, Plaintiff was transported to the Midtown South Precinct where she was incarcerated and detained in a holding cell, until the following day, September 9, 2022. Upon information and belief, Plaintiff was unlawfully incarcerated and detained at the Midtown South Police Precinct in excess of 12 hours.

20. For nearly the entirety of Plaintiff's detention and incarceration at the Midtown South Precinct, her grandmother remained in the lobby of the precinct or, when members of the NYPD refused to let her remain inside, even though it is a public building, she waited outside for Plaintiff to be released.

21. On the morning of September 9, 2022, Plaintiff was transferred via an NYPD van to Central Booking in Manhattan where she was incarcerated and detained in excess of four hours. During her transport from the Midtown South Police Precinct to Central Booking, Plaintiff was placed in handcuffs and chains and was physically attached to other incarcerated individuals.

22. Thereafter, Defendant Police Officers, including upon information and belief Defendants Jon E. Felz, Sal Tramontana, and John and Jane Doe Police Officers of the Midtown South Precinct (1-5), attempted to have Plaintiff maliciously prosecuted by and at their direction.

23. Eventually, on or about September 9, 2022, after Plaintiff had spent approximately 24 hours in custody, the District Attorney's Office of New York County

(hereinafter “DANY” or “Prosecutor”), declined to prosecute Plaintiff, dismissed all charges, and had Plaintiff released from the Tombs without ever being brought before the Court or arraigned.

24. Upon information and belief, DANY’s decision was made by an Assistant District Attorney (“ADA”) assigned to the Early Case Assessment Bureau, who, after reviewing the case file, arrest charges, the factual allegations, and speaking to the arresting officer, determined that probable cause to arrest and prosecute Plaintiff was lacking.

25. Defendants John and Jane Does Police Officers (1-5), Jon E. Felz (Shield Tax Reg. # 972635), and Sal Tramontana (Shield Tax Reg. # 949740), and all of the Midtown South Precinct were acting under the color of law when they unlawfully arrested Plaintiff and/or failed to intervene in Plaintiff’s arrest.

26. Defendants John and Jane Does Police Officers (1-5), Jon E. Felz (Shield Tax Reg. # 972635), and Sal Tramontana (Shield Tax Reg. # 949740), all of the Midtown South Precinct, either directly participated in the false arrest of and/or manufacturing of evidence against Plaintiff or failed to intervene in said constitutional violations despite being present for and/or aware that said violations were occurring, and despite an opportunity to intervene.

27. Defendant Sal Tramontana (Shield Tax Reg. # 949740) of the Midtown South Precinct supervised Jon E. Felz (Shield Tax Reg. # 972635) and John and Jane Doe Police Officers of the Midtown South Precinct (1-5) and otherwise participated in the above unconstitutional acts and/or failed to properly monitor, train, and supervise said Defendants.

28. All of the above occurred as a direct result of the unconstitutional policies, customs, or practices of the Defendant City of New York, including, without limitation, the inadequate screening, hiring, retaining, training, and supervising its employees, and pursuant to

customs, or practices of falsely arresting individuals and falsification of evidence to support said arrests.

29. The aforesaid event is not an isolated incident. Defendant City of New York is aware (from lawsuits, notices of claims, hearings before the City Council, and complaints filed with the NYPD's Internal Affairs Bureau, and the Defendant City of New York's Civilian Complaint Review Board) that many NYPD officers are insufficiently trained regarding probable cause to arrest and engage in a practice of falsification to support unlawful arrests.

30. Defendant City of New York is further aware that such improper training has often resulted in a deprivation of civil rights. Despite such notice, Defendant City of New York along with the NYPD has failed to take corrective action. This failure caused the officers in the present case to violate Plaintiff's civil rights.

31. Moreover, upon information and belief, Defendant City of New York was aware, prior to this incident, that the individual Defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as police officers. Despite such notice, Defendant City of New York and NYPD have retained these officers and failed to adequately train and supervise them.

32. As a result of the foregoing, Plaintiff sustained, inter alia, emotional distress, embarrassment, humiliation, and deprivation of her constitutional rights.

STATE LAW CLAIMS

AS AND FOR THE FIRST CAUSE OF ACTION

(False Arrest/Imprisonment under the Laws of the State of New York Against All Defendants)

33. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "32" with the same force and effect as if fully set forth herein.

34. Defendants disregarded their duty to protect Plaintiff and intentionally and unlawfully falsely arrested and imprisoned Plaintiff.

35. The individually named Defendants arrested Plaintiff without probable cause, causing her to be detained against her will for an extended period of time and subjected to physical restraints.

36. The individually named Defendants caused Plaintiff to be falsely arrested and unlawfully imprisoned.

37. Defendant City of New York, as the employer of the individually named Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

38. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury and is further entitled to punitive damages against the individual Defendants, in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR THE SECOND CAUSE OF ACTION

(Assault under the Laws of the State of New York Against Defendants City of New York, John and Jane Does Police Officers of the Midtown South Precinct (1-5), Jon E. Felz (Shield Tax Reg. # 972635))

39. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "38" with the same force and effect as if fully set forth herein.

40. As a result of the actions of Defendants John and Jane Does Police Officers of the Midtown South Precinct (1-5) and Jon E. Felz (Shield Tax Reg. # 972635), Plaintiff was placed in apprehension of imminent harmful and offensive bodily contact.

41. As a result of the actions of Defendants John and Jane Does Police Officers of the Midtown South Precinct (1-5) and Jon E. Felz (Shield Tax Reg. # 972635), Plaintiff has suffered

physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

42. Defendant City of New York, as employer of Defendants John and Jane Does Police Officers of the Midtown South Precinct (1-5) and Jon E. Felz (Shield Tax Reg. # 972635), is responsible for their wrongdoing under the doctrine of *respondeat superior*.

43. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury and is further entitled to punitive damages against the individual Defendants, in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR THE THIRD CAUSE OF ACTION

(Battery under the Laws of the State of New York Against Defendants City of New York, John and Jane Does Police Officers of the Midtown South Precinct (1-5), Jon E. Felz (Shield Tax Reg. # 972635))

44. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "43" with the same force and effect as if fully set forth herein.

45. Defendants John and Jane Does Police Officers of the Midtown South Precinct (1-5) and Jon E. Felz (Shield Tax Reg. # 972635), made offensive contact with Plaintiff without her permission or consent.

46. As a result of the actions of Defendants John and Jane Does Police Officers of the Midtown South Precinct (1-5) and Jon E. Felz (Shield Tax Reg. # 972635), Plaintiff has suffered physical pain and mental anguish, together with shock, fright, apprehension, embarrassment, and humiliation.

47. Defendant City of New York, as employer of Defendants John and Jane Does Police Officers of the Midtown South Precinct (1-5) and Jon E. Felz (Shield Tax Reg. # 972635), is responsible for their wrongdoing under the doctrine of *respondeat superior*.

48. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury and is further entitled to punitive damages against the individual Defendants, in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR THE FOURTH CAUSE OF ACTION

**(Negligent Screening, Hiring, and Retention under the laws of the State of New York
Against Defendant City of New York)**

49. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "48" with the same force and effect as if fully set forth herein.

50. Defendant City of New York failed to use reasonable care in the screening, hiring, and retention of Defendants, who falsely arrested Plaintiff and purported false claims which led to her ongoing detention and efforts to prosecute her.

51. Defendant City of New York knew or should have known, in the exercise of reasonable care, the propensities of the individual Defendants to engage in the wrongful conduct heretofore alleged in this Complaint.

52. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR THE FIFTH CAUSE OF ACTION

**(Negligent Training and Supervision under the laws of the State of New York Against
Defendant City of New York)**

53. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "52" with the same force and effect as if fully set forth herein.

54. Upon information and belief, the Defendant City of New York failed to use reasonable care in the training and supervision of the aforesaid individual Defendants, who

falsely arrested Plaintiff and purported false claims which led to Plaintiff's ongoing detention and initial efforts to prosecute her.

55. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

AS AND FOR THE SIXTH CAUSE OF ACTION

(Negligence under the laws of the State of New York Against Defendant City of New York)

56. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "55" with the same force and effect as if fully set forth herein.

57. The individually named Defendants, who were on duty and acting within the scope of their employment when they engaged in wrongful conduct described herein, carelessly, negligently, and recklessly inflicted injuries upon Plaintiff and failed to exercise the necessary amount of care and caution which a reasonable person would have exercised to prevent this foreseeable occurrence.

58. Plaintiff's injuries were due solely to the careless, negligent, and reckless conduct by the individually named Defendants, who were on duty and acting within the scope of their employment when they engaged in wrongful conduct described herein, without any negligence on the part of plaintiff contributing thereto.

59. Defendant City of New York, as the employer of the individually named Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

60. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs, and disbursements of this action.

FEDERAL CLAIMS**AS AND FOR THE SEVENTH CAUSE OF ACTION****(False Arrest/Unlawful Imprisonment under 42 U.S.C. § 1983 Against the Individually Named Defendants)**

61. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “60” with the same force and effect as if fully set forth herein.

62. The individually named Defendants arrested Plaintiff without probable cause, causing her to be detained against her will for an extended period of time and subjected to physical restraints.

63. The individually named Defendants caused Plaintiff to be falsely arrested and unlawfully imprisoned.

64. Defendant City of New York, as employer of the individually named Defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

65. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury and is further entitled to punitive damages against the individual defendants, in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys’ fees, costs and disbursements of this action.

AS AND FOR THE EIGHTH CAUSE OF ACTION**(Failure to Intervene under 42 U.S.C. § 1983 Against the Individually Named Defendants)**

66. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “65” with the same force and effect as if fully set forth herein.

67. The individually named Defendants had an affirmative duty to intervene on behalf of Plaintiff, whose constitutional rights were being violated in their presence by other officers.

68. The individually named Defendants failed to intervene to prevent the unlawful conduct described herein.

69. As a result of the foregoing, Plaintiff's liberty was restricted, she was put in fear of her safety, she was humiliated, and she was subjected to handcuffing and other physical restraints.

70. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR THE NINTH CAUSE OF ACTION

(Supervisory Liability under 42 U.S.C. § 1983 Against Defendant Sal Tramontana (Shield Tax Reg. # 949740))

71. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered "1" through "70" with the same force and effect as if fully set forth herein.

72. Defendant Sal Tramontana (Shield Tax Reg. # 949740) personally caused Plaintiff's constitutional injury by participating in the constitutional violations suffered by Plaintiff and being deliberately or consciously indifferent to the rights of Plaintiff in failing to properly supervise and train his subordinate employees.

73. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury and is further entitled to punitive damages against the individual defendants in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

AS AND FOR THE TENTH CAUSE OF ACTION**(Municipal Liability under 42 U.S.C. § 1983 against Defendant City of New York)**

74. Plaintiff repeats, reiterates, and realleges each and every allegation contained in paragraphs numbered “1” through “73” with the same force and effect as if fully set forth herein.

75. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure, or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

76. The aforementioned customs, policies, usages, practices, procedures, and rules of the NYPD included but were not limited to, arresting citizens without probable cause and then providing inaccurate, misleading, or perjurious information, and/or engaging in falsification and/or manufacturing evidence in an effort to prosecute and/or convict such individuals. In addition, Defendant City of New York engaged in a policy, custom, or practice of inadequate screening, hiring, retaining, training, and supervising its employees that was the moving force behind the violation of Plaintiff’s rights as described herein.

77. As a result of the failure of the Defendant City of New York to properly recruit, screen, train, discipline, and supervise its officers, including the individual Defendants, Defendant City of New York has tacitly authorized, ratified, and has been deliberately indifferent to, the acts and conduct complained of herein.

78. The foregoing customs, policies, usages, practices, procedures and rules of the Defendant City of New York and the NYPD constituted deliberate indifference to the safety, well-being and constitutional rights of Plaintiff.

79. The foregoing customs, policies, usages, practices, procedures and rules of the Defendant City Of New York and the NYPD were the direct and proximate cause of the constitutional violations suffered by Plaintiff as alleged herein.

80. As a result of the foregoing customs, policies, usages, practices, procedures, and rules of the Defendant City Of New York and the NYPD, Plaintiff was unlawfully arrested.

81. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating Plaintiff's constitutional rights. All of the foregoing acts by Defendants deprived Plaintiff of federally protected rights, including, but not limited to the right(s):

- A. To be free from false arrest/unlawful imprisonment; and
- B. To be free from falsification of evidence.

82. As a result of the foregoing, Plaintiff is entitled to compensatory damages in an amount to be determined at trial and fixed by a jury and is further entitled to punitive damages against the individual Defendants in an amount to be determined at trial and fixed by a jury, plus reasonable attorneys' fees, costs and disbursements of this action.

WHEREFORE, Plaintiff TALIA LIFSCHUTZ demands judgment and prays for the following relief, jointly and severally, against the Defendants:

- (A) full and fair compensatory damages in an amount to be determined by a jury;
- (B) punitive damages against the individual Defendants in an amount to be determined by a jury;
- (C) reasonable attorneys' fees and the costs and disbursements of this action; and
- (D) such other and further relief as appears just and proper.

Dated: New York, New York
November 20, 2023

GERALD B. LEFCOURT, P.C.

BY: s/ Gerald B. Lefcourt
Gerald B. Lefcourt, Esq.
Attorney For Plaintiff
TALIA LIFSCHUTZ
1776 Broadway, Suite 2000
New York, NY 10019

ATTORNEY VERIFICATION

GERALD B. LEFCOURT, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am an attorney at the law firm of GERALD B. LEFCOURT, P.C., attorneys for the Plaintiff Talia Lifschutz. I have read the annexed SUMMONS and VERIFIED COMPLAINT, and know the contents thereof, and the same is true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters, I believe them to be true. My belief, as to those matters not stated upon knowledge, is based upon facts, records, and other pertinent information contained in my files.

The reason this verification is made by me and not the Plaintiff is that Plaintiff does not reside in the county wherein the undersigned maintains my law office.

Dated: New York, New York
November 20, 2023

s/ Gerald B. Lefcourt
GERALD B. LEFCOURT